

25TRCV02552 25TRCV02552

County: los-angeles

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Case Number: 25TRCV02552 Hearing Date: July 1, 2026 Dept: E

Superior Court of California

County of Los Angeles

Southwest District

Torrance Dept. E

DOROTHY

R. EVERETT, an individual,

Plaintiffs,

Case No.:

25TRCV02552

vs.

[Tentative]

Sustained/granted

W&J

BUSINESS VENTURES, LLC, DOES 1 to 20, inclusive,

Defendants.

Hearing

Date: July
1, 2026

Moving Parties: Defendant W&J Business Ventures

Responding Party: Plaintiff Dorothy R. Everett

HEARING: Demurrer and Motion to
Strike

The Court considered the moving,
opposition, and reply papers.

RULING

The Court sustains the
Demurrer without leave to amend.

The Court grants the Motion to Strike without leave
to amend.

BACKGROUND

On July
31, 2025, Plaintiff Dorothy R. Everett filed the Complaint against Defendant W&J Business Ventures
alleging causes of action for negligence, private nuisance, public nuisance,
IIED, breach of contract, fraudulent concealment, and violation of Business and
Professions Code section 17200.

On December 9, 2025, Plaintiff filed
the First Amended Complaint (FAC).

On March 30, 2026, Plaintiff filed
the Second Amended Complaint (SAC).

On April 28, 2026, Defendant filed
the Demurrer with Motion to Strike.

On June 17, 2026, Plaintiff filed
the Opposition.

On June 24, 2026, Defendant filed
the Reply

LEGAL STANDARD

A demurrer can be
used only to challenge defects that appear on the face of the pleading under
attack or from matters outside the pleading that are judicially noticeable. (Blank
v. Kirwan (1985) 39 Cal.3d 311, 318.) “To survive a demurrer, the complaint
need only allege facts sufficient to state a cause of action; each evidentiary
fact that might eventually form part of the plaintiff’s proof need not be
alleged.” (C.A. v. William S. Hart Union High School Dist. (2012)

53 Cal.4th 861, 872.) For the purpose of testing the sufficiency of
the cause of action, the demurrer admits the truth of all material facts
properly pleaded. (Aubry v. Tri-City Hospital Dist. (1992) 2 Cal.4th
962, 966-967.) A demurrer “does not admit contentions, deductions or
conclusions of fact or law.” (Daar v. Yellow Cab Co. (1967) 67 Cal.2d
695, 713.)

A pleading is uncertain if it is ambiguous or
unintelligible. (Code Civ. Proc., § 430.10, subd. (f).) A demurrer for
uncertainty may lie if the failure to label the parties and claims renders the
complaint so confusing defendant cannot tell what he or she is supposed to
respond to. (Williams v. Beechnut Nutrition Corp. (1986) 185 Cal.App.3d
135, 139, fn. 2.) However, “[a] demurrer for uncertainty is strictly construed,
even where a complaint is in some respects uncertain, because ambiguities can
be clarified under modern discovery procedures.” (Khoury v. Maly’s of
California, Inc. (1993) 14 Cal.App.4th 612, 616.)

DISCUSSION

Plaintiff alleges she
sustained injuries from bedbugs during her stay at 8620 Airport

Blvd., Los Angeles, CA 90045, during August of 2024.

Defendants demur to
the second, third, fourth, fifth, and sixth causes of action.

Meet and Confer

Before filing a demurrer, “the demurring party shall meet and confer in person or by telephone with the party who filed the pleading that is subject to demurrer for the purpose of determining whether an agreement can be reached that would resolve the objections to be raised in the demurrer.” (Code Civ. Proc., § 430.41, subd. (a).)

On April 21, 2026, Defendant attempted to meet and confer with Plaintiff telephonically. Thus, the Court finds that Defendant has satisfied the meet and confer requirements.

Second Cause of Action – Private Nuisance

A claim of private nuisance requires that the defendant's actions (1) interfere with the plaintiff's use and enjoyment of their property, (2) cause substantial actual damage, and (3) result in an unreasonable interference based on the nature, duration, or extent of the interference. (San Diego Gas & Electric Co. v. Superior Court (1996) 13 Cal.4th 893, 938.)

“Any interest sufficient to be dignified as a property right will support an action based on a private nuisance, and this includes within its purview a tenancy for a term, such right does not inure in favor of a licensee, lodger, or employee.” (Venuto v. Owens-Corning Fiberglas Corp. (1971) 22 Cal.App.3d 116, 124-125.) “The customer in a motel is a ‘lodger’ or a guest, not a tenant. (To the extent that there is a technical distinction between lodger and guest, that difference is not significant here.) He has a personal contract and no interest in the realty.” (People v. Minervini (1971) 20 Cal.App.3d 832, 840.)

In ruling on the Demurrer to the FAC, the Court found that, as Plaintiff was merely a guest at the property, she had not pleaded a property interest in the property; thus, the cause of action for private nuisance was defective. (Venuto, supra, 22 Cal.App.3d 116, 124-125.) Here, the SAC has not rectified this defect. While Plaintiff argues in her opposition that “at the pleading stage, Plaintiff needs only allege facts showing a possessory interest in the property and there was a substantial interference with that interest.” (Opposition p. 7) She provides no citation for her argument. Furthermore, Plaintiff fails to distinguish Venuto v. Owens-Corning Fiberglas Corp. (1971)

22 Cal.App.3d 116, which the Court has consistently relied on. Last, as Plaintiff has now had three attempts to plead a cause of action for private nuisance and failed to do so, the Court finds that it is not reasonably likely that Plaintiff will be able to rectify the SAC's deficiencies.

Therefore, the Court sustains the Demurrer as to the second cause of action without leave to amend.

Third Cause of Action – Public Nuisance

The elements of public nuisance are as follows: (1) Defendant, by acting or failing to act, created a condition that was either harmful to health or obstructed the free use of property, interfering with the comfortable enjoyment of life or property; (2) the condition affected a substantial number of people simultaneously; (3) an ordinary person would be reasonably annoyed or disturbed by the condition; (4) the seriousness of the harm outweighs the social utility of the conduct; (5) plaintiff did not consent to the conduct; (6) plaintiff suffered harm distinct from that suffered by the general public; and (7) defendant's conduct was a substantial factor in causing plaintiff's harm. (*Birke v. Oakwood Worldwide* (2009) 169 Cal.App.4th 1540, 1548.)

In ruling on the Demurrer to the FAC, the Court found that the FAC failed to allege harm suffered by the general public or that the harm suffered by Defendant was somehow distinct from the harm suffered by the public.

Here, the SAC again fails to allege any harm suffered by Defendant that is distinct from the harm suffered by the general public. (Civ. Code § 3480.) While the SAC alleges "Plaintiff suffered harm as a result of the bed bug infestation that was different from the type

of harm suffered by the general public," a demurrer "does not admit contentions, deductions or conclusions of fact or law." (*Daar, supra*, 67 Cal.2d 695, 713; SAC ¶ 107.) Last, as Plaintiff has now had three attempts to plead a cause of action for public nuisance and failed to do so, the Court finds that it is not reasonably likely that Plaintiff will be able to rectify the SAC's deficiencies.

Therefore, the Court sustains the Demurrer to the third cause of action without leave to amend.

Fourth Cause of Action – IIED

To succeed on a cause of action for IIED, the plaintiff must prove outrageous conduct by the defendant that is the actual and proximate cause of the plaintiff's severe emotional distress. (*Huntingdon Life Sciences, Inc. v. Stop Huntingdon Animal Cruelty USA, Inc.* (2005) 129 Cal.App.4th 1228, 1259.)

To state a cause of action for IIED Plaintiff must plead "with great specificity the acts which he or she believes are so extreme as to exceed all bounds of that usually tolerated in a civilized community." (*Yau v. Santa Margarita Ford, Inc.* (2014) 229 Cal.App.4th 144, 161.)

In ruling on the Demurrer to the FAC, the Court found that the FAC did not allege any extreme and outrageous conduct with the required specificity to state a cause of action for IIED.

Here, the SAC again fails to allege any extreme and outrageous conduct with the required specificity. While the SAC alleges that Defendant had previous knowledge of the bed bug infestation from online reviews, a demurrer "does not admit contentions, deductions or conclusions of fact or law," and the Complaint does not state where the online reviews were posted, when they were posted, or by whom. (SAC ¶ 128-132; *Daar, supra*, 67 Cal.2d 695, 713.) Last, as Plaintiff has now had three attempts to plead a cause of action for public nuisance and failed to do so, the Court finds that it is not reasonably likely that Plaintiff will be able to rectify the SAC's deficiencies. Last, as Plaintiff has now had three attempts to plead a cause of action for IIED and failed to do so, the Court finds that it is not reasonably likely that Plaintiff will be able to rectify the SAC's deficiencies.

Therefore, the Court sustains the Demurrer to the fourth cause of action without leave to amend.

Fifth Cause of Action – Breach of Contract

The elements of

breach of contract are (1) the existence of a contract; (2) the plaintiff's performance or a valid excuse for nonperformance; (3) the defendant's breach or anticipatory breach of the contract; and (4) resulting damage to the plaintiff.

(Wall Street Network, Ltd. v. N. Y. Times Co. (2008) 164 Cal.App.4th 1171, 1178.)

To assert a cause of

action for breach of contract, a complaint "must indicate on its face whether the contract is written, oral, or implied by conduct." (Otworth v. Southern Pac. Transp. Co. (1985) 166 Cal.App.3d 452, 458.) Furthermore, "If

the action is based on an alleged breach of a written contract, the terms must be set out verbatim in the body of the complaint, or a copy of the written instrument must be attached and incorporated by reference." (Id.)

Here, the Court

finds that Plaintiff has failed to allege the terms of the contract verbatim in the SAC or attach a written contract.

Plaintiff has attached an email showing a reservation confirmation; however, a reservation confirmation is not a contract. Furthermore, Plaintiff is not named in the confirmation.

Therefore, the

Court sustains the Demurrer to the fifth cause of action without leave to amend.

Sixth Cause of Action – Fraudulent Concealment

To bring a

fraudulent concealment claim, the plaintiff must allege: (1) the defendant concealed or suppressed a material fact; (2) the defendant had a duty to disclose that fact to the plaintiff; (3) the defendant intentionally concealed or suppressed the fact with the intent to defraud the plaintiff; (4) the plaintiff was unaware of the fact and would not have acted as they did if they had known of the concealed or suppressed fact; and (5) the plaintiff sustained damages as a result of the allegedly concealed or suppressed fact. (See Prakashpalan v. Engstrom, Lipscomb & Lack (2014) 223 Cal.App.4th 1105, 1129.)

In *Lazar v. Superior Court* (1996) 12 Cal.4th 631, the Court found that “fraud must be pled specifically; general and conclusory allegations do not suffice” and that “this particularity requirement necessitates pleading facts which show how, when, where, to whom, and by what means the representations were tendered.” (*Lazar*, supra, 12 Cal.4th 631, 645.)

Here, while the SAC alleges that Defendant had previous knowledge of the bed bug infestation from online reviews, a demurrer “does not admit contentions, deductions or conclusions of fact or law,” and the SAC does not state where the online reviews were posted, when they were posted, or by whom, nor does the SAC allege how Defendant knew of the reviews or how they were concealed from Plaintiff. (SAC ¶ 128-132; *Daar*, supra, 67 Cal.2d 695, 713.) Thus, the Court finds that Plaintiff has not pleaded sufficient facts to show that Defendants had knowledge of the alleged bed bug infestation, nor that Defendant acted with the requisite intent to deceive. (*Prakashpalan v. Engstrom, Lipscomb & Lack* (2014), 223 Cal.App.4th 1105, 1129.) Last, as Plaintiff has now had three attempts to plead a cause of action for fraudulent concealment and failed to do so, the Court finds that it is not reasonably likely that Plaintiff will be able to rectify the SAC’s deficiencies.

Therefore, the Court sustains the Demurrer as to the sixth cause of action without leave to amend.

Motion to Strike

California law authorizes a party’s motion to strike a matter from an opposing party’s pleading if it is irrelevant, false, or improper. (Code Civ. Proc., §§ 435; 436 subd. (a).) Motions may also target pleadings or parts of pleadings that are not filed or drawn in conformity with applicable laws, rules, or orders. (Code Civ. Proc., § 436 subd. (b).) A motion to strike is used to address defects that appear on the face of a pleading or from a judicially noticed matter but that are not grounds for a demurrer. (*Pierson v Sharp Memorial Hospital* (1989) 216 Cal.App.3d 340, 342; see also *City & County of San Francisco v Strahlendorf* (1992) 7 Cal.App.4th 1911, 1913 (motion may not be based on a party’s declaration or factual representations

made by counsel in the motion papers).) In particular, a motion to strike can be used to attack the entire pleading or any part thereof – in other words, a motion may target single words or phrases, unlike demurrers. (Warren v. Atchison, Topeka & Santa Fe Railway Co. (1971) 19 Cal.App.3d 24, 40.) California's policy of liberal construction applies to motions to strike. (Code Civ. Proc., § 452; see also Duffy v. Campbell (1967) 250 Cal.App.2d 662, 666 (noting that courts must resolve all reasonable doubts in favor of the pleading when considering a motion to strike).) The Code of Civil Procedure also authorizes the Court to act on its own initiative to strike matters, empowering the Court to enter orders striking matter "at any time in its discretion, and upon terms it deems proper." (Code Civ. Proc., § 436.)

"In

order to survive a motion to strike an allegation of punitive damages, the ultimate facts showing an entitlement to such relief must be pled by a plaintiff." (Clauson v. Superior Court (1998) 67 Cal.App.4th 1253, 1255.) A request for punitive damages may be made pursuant to Civil Code section 3294 subdivision (a), which provides that "[i]n an action for the breach of an obligation not arising from contract, where it is proven by clear and convincing evidence that the defendant has been guilty of oppression, fraud, or malice, the plaintiff, in addition to the actual damages, may recover damages for the sake of example and by way of punishing the defendant." (Civil Code § 3294 subd. (a).)

Under

the statute, malice is defined as "conduct which is intended by the defendant to cause injury to the plaintiff or despicable conduct which is carried on by the defendant with a willful and conscious disregard of the rights or safety of others," and oppression is defined as "despicable conduct that subjects a person to cruel and unjust hardship in conscious disregard of that person's rights." (Code Civ. Proc. § 3294 subd. (c)(1), (c)(2).) Although not defined by the statute, despicable conduct refers to circumstances that are base, vile, or contemptible. (College Hospital, Inc. v. Superior Court (1994) 8 Cal.4th 704, 725.) Also, "[u]nder the statute, malice does not require actual intent to harm...Conscious disregard for the safety of another may be sufficient where the defendant is aware of the probable dangerous consequences of his or her conduct and he or she willfully fails to avoid such consequences" (Pfeifer v. John Crane, Inc. (2013) 220 Cal.App.4th 1270, 1299.)

Here, as the only allegations that Defendant had any knowledge of the alleged bed bug infestation are conclusory, the Court finds

that Plaintiff has not alleged any conduct that would allow for a recovery of punitive damages. Furthermore, as Plaintiff has now had three attempts to plead punitive damages and has failed to do so, the Court finds that it is not reasonably likely that Plaintiff will be able to rectify the SAC's deficiencies.

Therefore, the Court grants the Motion to Strike without leave to amend.